

AML / CTF Operational Playbook

DASP & PSAV El Salvador

A working cheat-sheet for the Compliance Officer: inputs (client, amount, risk) → required action (DD level, documents, Travel Rule, reporting, deadlines) — every row cited to statute.

LEAD · Decree 643/2023

RPSAD · CNAD-035-2023

AML Law · Decree 426/2025

LECAT · Decree 108/2006 + D-928/2024

UIF Instructivo · Acuerdo 380/2021

Version: 3.4 · desk-reference rewrite

Legal cutoff: 21 June 2026

Method: every requirement cited to Law + Article + Regulator · FATF / OFAC / EU / UK only as external reference, not as source of obligation

Audience: DASP / PSAV registration practitioners, El Salvador

Supersedes v1.0 and v2.0. This document is not legal advice; every row must be validated with admitted Salvadoran counsel before operational rollout. Do not remove citations when copying into internal policy — they are the trail that survives an inspection.

0. Quick reference card

One page. Keep it on the desk. Every number is cited. For the reasoning behind a number, go to the section indicated.

Reporting thresholds — Operaciones Regulasdas

Means	Single	Monthly	Report
Cash	> US\$10,000	> US\$10,000	5 bd
Other	> US\$25,000	> US\$25,000	5 bd

UIF Instr. Art. 51 · detail §8

Travel Rule data — PSAV scope

PSAV: any digital-asset transfer · any amount. The 7-field originator + beneficiary set attaches to every transfer regardless of value (Art. 52 par. 2 CAPS: "even those that do not exceed the established thresholds").

UIF Instr. Arts. 52 par. 2 (Reform 2), 84-B(1)(e) (Reform 1) · detail §7

Statutory deadlines

STR after determination	24 h
Internal analysis (extendable 1×)	≤15 bd
UNSC / national list freeze report	without delay
Operación Regulada	5 bd
UIF data update	15 bd
CO appointment → UIF	15 bd
CO removal → UIF	5 bd
CNAD material change	5 bd
Training plan Board-approved	by 31 Dec
Retention of all AML files	15 yr

Beneficial owner thresholds

Source	%	Posture
UIF Instr. Arts. 12 last sent., 20(b)	≥ 10%	Apply — stricter
LECLDA Art. 15 par. 5	≥ 25%	Law
Instr. Art. 21-A (Reform 2)	majority + control + highest mgmt fallback	VASP-specific cascade
Plus: Art. 20(a) — natural person on whose behalf relationship is sought (nominee detection); listed-company exception.		

Detail §6

DD levels — when

SDD	Documented low risk, no EDD trigger, no PEP, no high-risk jur
Standard	Default for any ongoing relationship
EDD	PEP (+ family ≤2nd, close assoc, ≤5y post-cease) · high-risk jur · opaque ownership · cash-intensive · unusual pattern · complex structure
REJECT	UNSC / national list hit · client refuses CDD · prohibited asset

Detail §5

Perimeter of permitted assets

Allowed	Transparent-ledger AV listed at registration (BTC, ETH, SOL, TRX...); CNAD-authorized regulated stablecoins (USDT, USDC...).
Rejected	Privacy coins (XMR, ZEC, DASH); algorithmic stablecoins; additional stablecoins / new tokens without express CNAD authorisation.

LEAD Arts. 9(k)(l), 20(b), 21(e)(q) · RPSAD Art. 9 · detail §4

Essential contacts & channels

Regulator	Matter	Channel
UIF (FGR)	Registration, STR, Operación Regulada, list freezes, CO notifications, data updates	Electronic UIF platform · UIF Instr. Arts. 3, 27–35, 43, 51, 64
CNAD	DASP registration, material changes, AML supervision overlay	CNAD electronic procedure · LEAD Arts. 18, 20 RPSAD Art. 9
BCR	Bitcoin-only PSAV track (if applicable)	UIF Instr. Art. 84-A
FGR (Fiscalía)	Criminal referrals (terrorism); tipping-off prosecutions	LECAT Art. 37 · LECLDA Art. 44

Red lines — do not cross

(1) No tipping-off to client or third parties — criminal. (2) No STR later than 24 h from determination. (3) No UNSC / national hit without freezing without delay and reporting to UIF. (4) No PSAV transfer without full Travel Rule data. (5) No SDD for PEP / high-risk. (6) No operation on prohibited asset. (7) No relationship without BO identified to a natural person. (8) No file destroyed before 15 years.

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Citation legend

LEAD = Digital Asset Issuance Law, Decree 643/2023 · CNAD · **RPSAD** = CNAD-035-2023 · **AML Law** = Decree 426/2025 · UIF · **LECAT** = Decree 108/2006 + 928/2024 · FGR/UIF · **UIF Instr.** = Acuerdo 380/2021 · UIF · **Instructivo UIF Cap. IV-B** = UIF Guía PSAV · imperative AML/CFT obligations · DO 2 Dec 2022 · **gap** = not regulated / pending rulemaking · **practice** = supervisory expectation, not statutory

1. How to use this playbook

This is a decision tool, not a compendium. For every operational event (onboarding, transaction, change, incident), go to the relevant framework, match inputs, execute the required action. Every row is cited. Where the law is silent, the row is marked **gap** and the conservative default is shown until the Reglamento (AML Law Art. 60) arrives.

The seven operational events

A Client walks in.
Perimeter gate (§4) → DD level (§5) → documents (§6) → screening (§10).

B Transaction requested.
Re-screen (§10) + Travel Rule (§7) + threshold check (§8) + KYT.

C Pattern looks off.
Framework E (§9) — analysis ≤15 bd → STR within 24 h.

D List hit.
Framework F (§10) — freeze, report UIF without delay, no tipping-off.

E Client data changed.
Refresh triggers (§12) — UIF 15 bd; CNAD 5 bd.

F Calendar tick.
Framework G (§11) — training plan, audit, committee, BO refresh.

G CO change.
UIF notification: 15 bd appointment / 5 bd removal.

Three global rules applied everywhere

Rule 1 — Stricter of two. When AML Law and UIF Instructivo conflict, Law prevails by hierarchy and posteriority (Art. 61 Law keeps Instructivo only "in what does not contradict"). Until the Reglamento, apply the *stricter* of the two (BO 10%, STR 24 h). This eliminates supervisory risk under either reading.

Rule 2 — Cite or don't claim. Every internal policy line, every training slide, every client-facing statement carries a citation (Law + Article) or is marked **practice**. No FATF / OFAC / EU / UK in policy bodies — they are external frameworks, not Salvadoran law.

Rule 3 — Document the timestamp. The STR 24-hour clock starts from the *determination* after internal analysis. Without a timestamped determination, the clock is ambiguous and UIF reads it against you. Every analysis file closes with a dated, signed determination line.

2. Executive red lines

Ten lines where a single breach exposes the DASP, its Compliance Officer and its Directors to administrative sanction and/or criminal liability under LECAT. Every line is cited to statute.

1 · UIF registration before operating

PSAV cannot start before UIF + sectoral supervisor registration (BCR for Bitcoin; CNAD for other DA). [UIF Instr. Art. 84-A](#) [AML Law Art. 9\(1\)](#)

2 · CO + Deputy CO both mandatory

Board-appointed, rank immediately below CEO, functional independence. Deputy is not optional. [AML Law Art. 20](#) [UIF Instr. Art. 64](#)

3 · STR within 24 hours

AML Law 24 h prevails over Instructivo's 5 bd. Timestamped determination required. [AML Law Art. 24](#) [UIF Instr. Art. 43](#)

4 · Travel Rule no floor (PSAV)

Full originator & beneficiary data on every digital-asset transfer, any amount. [UIF Instr. Art. 84-B\(1\)\(e\)](#)

5 · UNSC freeze without delay

Screen, freeze immediately, report UIF without any delay (LECAT Art. 37 verbatim — no fixed-day deadline). [LECAT Art. 37](#) [UIF Instr. Arts. 27–35](#)

6 · Statutory thresholds

Cash > US\$10,000 single/monthly; other means > US\$25,000 single/monthly → 5 bd report. [UIF Instr. Art. 51](#)

7 · BO identified to a natural person

Law 25%; Instructivo 10%. Apply 10%; add control by other means with no floor. [AML Law Art. 2](#) [UIF Instr. Arts. 12, 20](#)

8 · 15-year retention

Full CDD, transactions, analysis, STR, training, audits, committee. [AML Law Art. 26](#)

9 · No tipping-off — ever

Criminal offence. No signals, no hints, no "AML reason" decline rationale to client. [LECLDA Art. 44](#)

10 · Prevention Committee operating

≥3 members (Law) incl. director + CO. Quarterly cadence is defensible practice. [AML Law Art. 23](#) [UIF Instr. Art. 68](#)

3. Regulatory stack & transitional regime

Six instruments govern a PSAV / DASP. The UIF Instructivo, issued under repealed D-498/1998, survives transitionally by AML Law Art. 61 — "in what does not contradict" the new Law — until the Reglamento of Art. 60 issues. The CNAD AML/CFT/CPF Risk-Management Guide for the Digital Assets Industry (22.12.2023) is **binding** for DASPs, issued by CNAD's Consejo Directivo under LEAD Art. 21(o) and RPSAD Art. 19 — not soft-law.

Instrument	Decree / Act	Regulator	In force	Operational scope
LEAD	Decree 643 · 9 Jan 2023	CNAD	11 Jan 2023	DASP statute. Activities (Art. 19), registration (Arts. 18, 20), tax (Art. 36), sanctions (Arts. 38–40).
RPSAD	CNAD-035-2023	CNAD	2023	Registration procedure, documentation, 20-bd/10-bd cycle, material changes, operational rules.
LECLDA (AML Law)	Decree 426 · 2025	UIF (FGR)	8 days after D.O. publication (Art. 62) · Casa Presidencial 8 Oct 2025	<i>Ley Especial Contra el Lavado de Dinero y de Activos</i> . Replaces D-498/1998. CDD, governance, 24-h STR, BO ≥25%, 15-yr retention, sanctions.
LECAT	Decree 108/2006 + D-928/2024	FGR / UIF	2006 (amd. 2024)	Terrorism offences, UNSC freezing (Art. 37). Tipping-off is in LECLDA Art. 44 (not LECAT).
UIF Instructivo	Acuerdo 380/2021 + Reform 1 + Reform 2	UIF	2021 — transitional (LECLDA Art. 61). New Instructivo expected.	CDD (Art. 12 Reform 2 identity gate), EDD (Art. 13 Reform 2), SDD (Art. 14 + Art. 14-A(III) Reform 2 — DD on every occasional e-transfer), PEP (Arts. 16-18), BO ≥10% (Arts. 12 last sent., 20(b)) + UBO cascade (Art. 21-A Reform 2), thresholds (Arts. 51, 52), Travel Rule (Art. 52 par. 2 Reform 2), VASP Chapter IV-B (Arts. 84-A/B/C Reform 1), training (Art. 54), committee (Art. 68), retention, monitoring (Arts. 36-42).
Bitcoin Law	Decree 57/2021 + D-199/2025 Reform	BCR (Registry) + SSF (supervision)	7 Sept 2021 (orig.) · 30 Apr 2025 (Reform)	Bitcoin legal tender + voluntary acceptance (post-Reform); BSP Registry; D-27/2021 Reglamento operational. Reform: Arts. 4/8/9 derogated (no taxes in BTC, Chivo wound down); Art. 7 reformed (private actors only). Affects BSP track only — DASP/AML unchanged.
Instructivo UIF Cap. IV-B	UIF (FGR) — DO 2 Dec 2022	UIF (FGR)	Arts. 84-A/B/C (reform 266/2023)	PSAV-specific obligations: risk-based customer due diligence, regulated-operation reporting via goAML (6 PSAV forms), suspicious-operation reporting (ROS) and Travel Rule. The standalone PSAV guide previously published was repealed and its substance consolidated into the Instructivo.

Transitional regime — LECLDA (Decree 426/2025)

Article	Rule
Art. 58	Supervisors: 6 months from entry into force to perform maturity diagnosis of newly in-scope obligated entities. Obligated entities: 12 months to adapt to supervisor requirements. <i>A new registrant complies from day one.</i>
Art. 60	Executive to issue Reglamento within 90 days from entry into force of the Law. Not yet published at cutoff (Q1 2026).
Art. 61	Repeals D-498/1998. Pending new Reglamento and Instructivo, the prior D-2/2000 Reglamento and the UIF Instructivo (Acuerdo 380/2021) remain in force in what does not contradict the new Law.
Art. 62	Law enters into force 8 days after publication in the Diario Oficial . Promulgated by Casa Presidencial on 8 October 2025.

Implication on day one

Comply with LECLDA (Decree 426/2025) *and* UIF Instructivo in non-contradictory items, *and* Reformed Instructivo (LECLDA + Reform 1 + Reform 2). On conflict (BO 10%/25%/majority; STR 24 h/5 bd), the Law prevails by hierarchy; the safe posture is the **stricter** of the instruments. This covers any supervisory reading.

4. Asset & activity perimeter — pre-CDD gate

Before any CDD step, check two gates: (a) is the activity within the DASP's registered scope under LEAD Art. 19? (b) is the requested asset within the authorised perimeter? A "no" on either gate ends the flow — no AML workaround can cure a perimeter breach, and operating outside authorised perimeter is sanctionable on its own under LEAD Arts. 38–40.

4.1 Allowed / rejected assets

Status	Asset class	Why
Allowed	Transparent-ledger AV listed in the DASP's registration file and accepted by CNAD (e.g., BTC, ETH, SOL, TRX, depending on registration)	Traceability compatible with AML controls; listed at registration. RPSAD Art. 41
Allowed	CNAD-authorised regulated stablecoins (e.g., USDT, USDC)	Express CNAD authorisation; collateral transparency.
Requires prior CNAD analysis	Additional stablecoins; tokens from digital-asset issuances	Must be submitted to CNAD analysis and accepted before marketing. LEAD Arts. 9(k)(l), 21(e)
Rejected	Privacy coins (XMR, ZEC, DASH)	Design incompatible with Travel Rule (Art. 84-B(1)(e)) and with CDD traceability obligations.
Rejected	Algorithmic stablecoins; unvetted newly issued tokens; tokens from sanctioned protocols	Not within authorised perimeter; risk of sanction or collapse.

4.2 Perimeter-as-AML gate — how it is enforced

1 Onboarding intake asks:
which assets does the client intend to transact? → If outside perimeter at that layer, offer alternatives within perimeter or decline.

2 Transaction screening:
rejected-asset tokens are blocked by the platform. Any attempt logged for pattern analysis.

3 Incoming blockchain trace (KYT):
exposure to privacy-coin mixers or sanctioned protocols on the incoming leg → red flag even if the asset received is within perimeter.

4 Perimeter changes:
adding a new asset to the offering requires CNAD material change notification within
5 business days
[RPSAD Art. 9](#) and, for stablecoins / issued tokens, prior CNAD analysis.

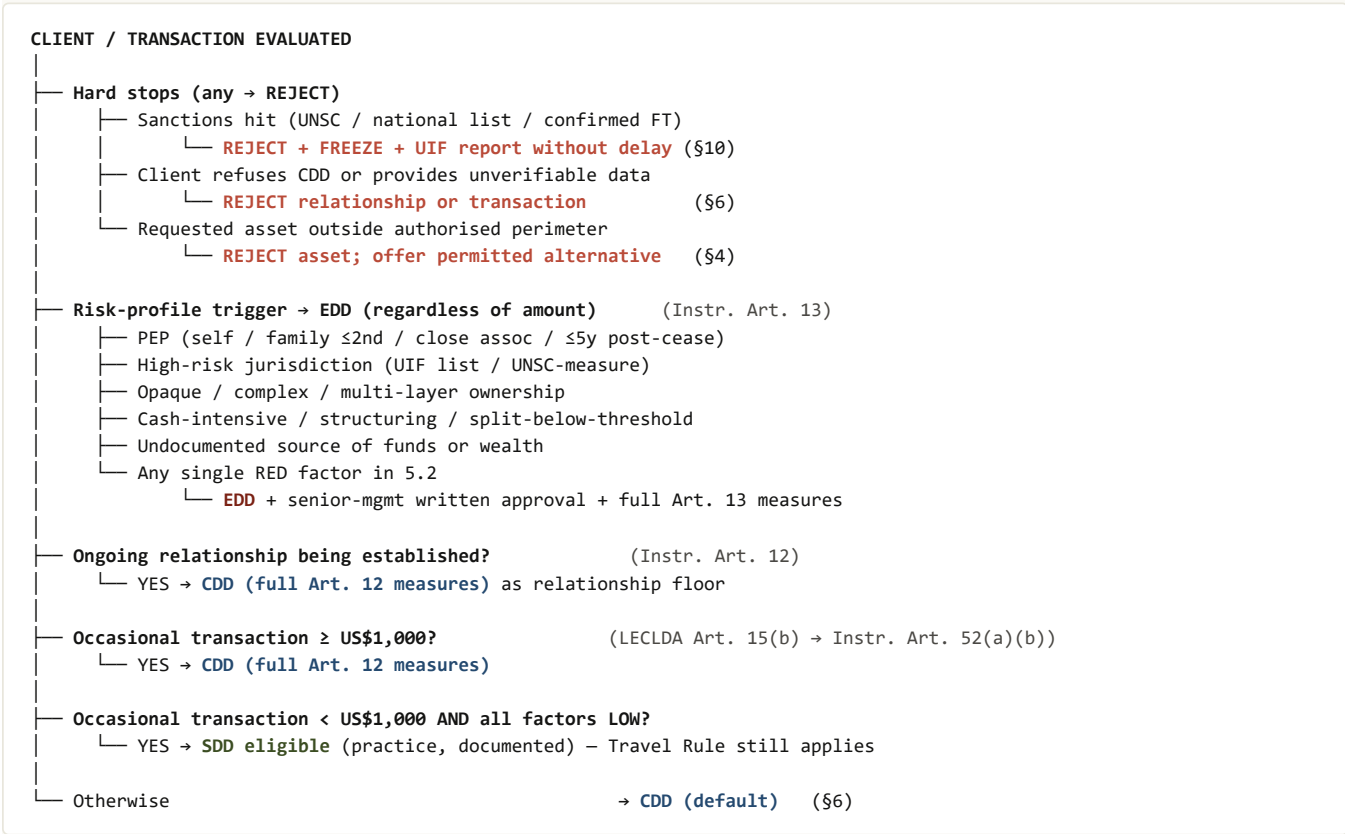
Perimeter breach ≠ AML violation, but cumulative

Operating outside the authorised perimeter is sanctionable under LEAD Arts. 38–40 (up to very grave). If the breach also touches AML (e.g., privacy-coin acceptance frustrates CDD traceability), sanctions under AML Law Arts. 34–35 stack on top. Perimeter discipline is first-line AML discipline.

5. Framework A — CDD level decision

Given a client (natural or legal) and a transaction, pick the DD level: **SDD**, **CDD**, **EDD**, or **REJECT**. **Two independent triggers** run in parallel: (i) *amount* — activates CDD for occasional transactions at US\$1,000 (LECLDA Art. 15(b) → Instr. Art. 52(a)(b)); (ii) *risk profile* — activates EDD regardless of amount (UIF Instr. Art. 13). The Travel Rule is a separate obligation (§7), not a DD level, and applies to every DA transfer irrespective of amount or DD outcome.

5.1 Decision tree



Hard rule — no SDD for these

SDD is never available for PEP (any), high-risk jurisdictions, cash-intensive profiles, complex / opaque ownership, prior adverse UIF history, or any RED trigger in 5.2. A single red factor → EDD. SDD is **practice**-based: neither the Law nor the Instructivo names "SDD" as such; it is operational light-touch treatment within Art. 12 where risk is documented low and no amount/risk trigger fires.

UIF Instr. Arts. 12, 13 LECLDA Art. 15(b) → Instr. Art. 52(a)(b)

Three parallel obligations — do not conflate

(1) DD level (SDD / CDD / EDD) — client-level risk procedure, Arts. 12/13 Instructivo. **(2) Travel Rule** — per-transfer data obligation, every DA transfer regardless of amount, §7 (Instr. Art. 52 par. 2 (Reform 2), final CAPS paragraph of §2; Instr. Art. 84-B(1)(e)). **(3) Operación Regulada reporting** — fiscal-style threshold report, §8 (Instr. Art. 51). The three trigger independently and must coexist in every transaction file.

5.2 Risk factor catalogue

Factor family	SDD allowed · green	Standard · amber	EDD required · red
Client status	Local natural person, salaried, low footprint	Resident natural person / domestic SME with declared income	PEP (any); family ≤2nd; close assoc; person acting for a third party
Jurisdiction	El Salvador / neighbouring; customer on national territory	Recognised AML frameworks	High-risk jurisdictions per UIF/FGR; UNSC-measure jurisdictions
Ownership (legal entity)	Single owner, one jurisdiction, transparent purpose	Straightforward group, BOs at 10%	Multi-layer / bearer-share / nominee / trust / BO below 10% with control by other means

Factor family	SDD allowed · green	Standard · amber	EDD required · red
Product / channel	Low-value on-ramp, face-to-face / verified remote	Standard exchange, custody	Cross-border, privacy features, high-velocity, unhosted-wallet counterparties
Transaction profile	Low, predictable	Consistent with declared profile	Inconsistent, rapid ramp-up, structuring, split-below-threshold
Source of funds	Salary / stable business revenue, documented	Documented mixed sources	Cash, undocumented, unsupported gift / inheritance, unusual asset-sale proceeds

A single red marker in any row → EDD. Document the assessment in the client file (dated, signed by CO) and refresh at every relationship review.

5.3 Risk scoring matrix

Internal grid for consistency across analysts and as KYT-configuration baseline. Not a statutory requirement; practice. The scoring is advisory on top of 5.1 — it never overrides a hard trigger (PEP → EDD no matter what the score says).

Factor family	0 pts · low	1 pt	2 pts	3 pts · very high
Client status	Local salaried natural person	Domestic SME, documented	Foreign national; person acting for third party	PEP / family ≤2nd / close associate
Jurisdiction	El Salvador	Regional, recognised AML	Mixed / weak AML record	UIF-listed high-risk / UNSC-measure
Ownership (entity)	Single natural owner	Small group, BOs at 10%	Cross-border ownership, one layer	Multi-layer / trust / nominee / opaque
Product / channel	On-ramp only, face-to-face	Standard exchange	Cross-border transfers, custodied	Unhosted wallets, privacy features, high-velocity
Transaction profile	Very low, predictable	Within declared profile	Rising volume, mixed counterparties	Inconsistent / structuring signs
Source of funds	Salary / documented business	Mixed documented	Partial documentation	Cash / undocumented / unusual origin

Total score	Level	Treatment
0 – 4	Low	SDD eligible if no hard EDD trigger (PEP / high-risk jur / prohibited asset). Default SDD; quarterly review.
5 – 9	Medium	Standard CDD; ongoing monitoring against declared profile; periodic review every 3 years.
10 – 14	High	EDD mandatory. Senior-management approval written. Annual refresh. KYT on every transaction.
15 – 18	Very high	EDD plus Board-level approval; consider declining. Half-yearly refresh. Relationship terms with exit clause.

Override logic. Any hard EDD trigger (PEP, high-risk jurisdiction, opaque ownership, cash-intensive, prior adverse history, structuring signs) forces EDD regardless of score. The score's purpose is consistency within the Standard / EDD bands — not to weaken the Framework A decision tree.

6. Framework B — Identification & documentation by DD level

Minimum documentary set per DD level and client type. Column mapping: **SDD** = light-touch practice within Art. 12 where risk is documented low and no amount/risk trigger fires; **CDD** = full Instructivo Art. 12 measures (a–i); **EDD** = Instr. Art. 13 measures (natural persons a–c / legal entities a–i) with verification of source of wealth. "Required" cannot be waived. CO signs off the file before relationship opens.

6.1 Natural person

Document / data	SDD	CDD (Art. 12)	EDD (Art. 13)	Source
Government photo ID (DUI / passport / residence)	Required	Required	Required · two IDs	AML Law Art. 15 UIF Instr. Art. 20
Current address (utility ≤3m / bank statement / registry)	Self-declaration	Documented	Documented · independently verified	UIF Instr. Art. 20
Occupation & employer	Self-declaration	Documented	Documented · verified	UIF Instr. Art. 20
Tax ID (NIT) if applicable	Required	Required	Required	UIF Instr. Art. 20
Source of funds for the transaction	Optional · RBA discretion	Declaration mandatory · docs on RBA	Full documentary (payroll, sale contract, bank statement)	D-426 Art. 15 UIF Instr. Arts. 12(c), 13(a)
Source of wealth (overall patrimony)	—	On request	Required · documented	UIF Instr. Art. 13
Expected activity profile (volume / frequency / counterparties)	Brief	Full	Full + scenarios	UIF Instr. Art. 14-A
PEP self-declaration + screening	Required	Required	Required · re-checked every review	UIF Instr. Arts. 16–18
Senior-management written approval to open / continue	—	—	Required	UIF Instr. Art. 13
Enhanced ongoing-monitoring flag	—	—	Required	UIF Instr. Art. 13

6.2 Legal entity

Document / data	SDD	CDD (Art. 12)	EDD (Art. 13)	Source
Deed of incorporation / escritura	Required	Required	Required	AML Law Art. 15
Commercial-registry extract (≤3m)	Required	Required	Required	UIF Instr. Art. 20
NIT, operating licence	Required	Required	Required	UIF Instr. Art. 20
Board / assembly resolution authorising relationship	Required	Required	Required	UIF Instr. Art. 20
Shareholder register — ≥10% (strict) / ≥25% (Law)	Required	Required	Required · full chain to natural BO	AML Law Art. 2 UIF Instr. Arts. 12, 20
BO identification (natural person) + source of funds / wealth of BO	Required	Required	Required · documentary	UIF Instr. Arts. 20, 21
Authorised signatories IDs + powers	Required	Required	Required	UIF Instr. Art. 20
Business purpose + main counterparties + jurisdictions	Brief	Full	Full + commercial evidence	UIF Instr. Art. 14-A
Expected volume and frequency	Brief	Full	Full + scenarios	UIF Instr. Art. 14-A
Audited financials (last year)	—	On request	Required if size warrants	UIF Instr. Art. 13
Ownership chart to ultimate BO	—	Required	Required · with supporting docs	UIF Instr. Art. 20
Trust set (settlor, trustee, beneficiaries, protector)	—	Required if applicable	Required if applicable	UIF Instr. Art. 21
Senior-management written approval	—	—	Required	UIF Instr. Art. 13

7. Framework C — Transaction pipeline & Travel Rule

Every transaction (fiat on-ramp, fiat off-ramp, crypto-to-crypto, external transfer) runs through the same pipeline. Five checkpoints: perimeter, re-screening, Travel Rule, KYT, threshold check.

Travel Rule is not a DD level

Travel Rule is a **per-transfer data obligation**, parallel to and independent from the DD level (§5/§6) and from Operación Regulada reporting (§8). Collect and transmit full originator + beneficiary data on *every* digital-asset transfer, regardless of amount, regardless of whether the client is under SDD / CDD / EDD, regardless of whether the transaction crosses an Art. 51 reporting threshold. Three legal anchors act together: (i) [UIF Instr. Art. 84-B\(1\)\(e\)](#) — PSAV records obligation to preserve origin and destination of DA operations; (ii) [Instr. Art. 52 par. 2 \(Reform 2\)](#) — FATF Recommendation 16 (wire transfers) imported to DASPs and to DA transfers under the "Travel Rule"; (iii) [Instr. Art. 52 par. 2 final paragraph](#) — "under no circumstances should DASPs fail to collect and store information to be used through the 'Travel Rule' in Digital Asset transfers, regardless of the transaction amount" (emphasis in Guide).

7.1 Transaction pipeline

0 Perimeter check

— requested asset within the DASP's authorised perimeter? Otherwise block. [LEAD Art. 21\(e\)](#) [RPSAD Art. 41](#)

1 Re-screen

client + counterparty + wallet against UNSC / national / PEP. Block and freeze on match. [LECAT Art. 37](#)

2 Travel Rule data

— full originator + beneficiary set on every DA transfer, no amount floor. [UIF Instr. Art. 84-B\(1\)\(e\)](#) [Instr. Art. 52 par. 2 \(Reform 2\)](#) + §2 final CAPS

3 KYT analytics

— blockchain trace, counterparty wallet risk, pattern. Tool-agnostic but mandated as risk management. [UIF Instr. Art. 84-B\(1\)](#)

4 Threshold check

— does single op or monthly aggregate cross Art. 51? Does pattern diverge from profile? → Framework D / E.

5 Execute or hold.

If data missing, re-screen amber, hold and escalate to CO. No tipping-off at any point. [LECLDA Art. 44](#)

7.2 Travel Rule data set — PSAV (any amount)

The Reformed Instructivo Art. 52 par. 2 (Reform 2) sets out the mandatory data accompanying every electronic transfer (regardless of threshold). For DASPs, the parallel anchor in Art. 84-B(1)(e) (Reform 1) requires preserving customer and operation records to know origin and destination of virtual-asset transactions. The data set: (i) transaction date; (ii) type and quantity of each virtual currency; (iii) name of the institution, its address, nature of principal activity or occupation, and (for individuals) date of birth; (iv) name and address of beneficiaries; (v) number of each account affected, type of account, and name of each account holder; (vi) each reference number functioning equivalently to an account number; (vii) each transaction identifier including sending and receiving addresses; (viii) exchange rates used and their source.

Party	Data point	PSAV — every DA transfer (no floor)	Traditional wire — banks / non-DASP
Originator	Full legal name / registered name	Required	Required ≥ US\$1,000 / remittance ≥ US\$200
	Unique ID (account / wallet address)	Required	Required
	National ID or tax number	Required	Required
	Residential / registered address + country	Required	Required
	Nature of principal activity / occupation	Required	Required
	Date of birth (individuals) / date of formation (entities)	Required	On request
Beneficiary	Full legal name / registered name	Required	Required
	Unique ID (account / wallet address)	Required	Required
	Country + address	Required	Required

Party	Data point	PSAV — every DA transfer (no floor)	Traditional wire — banks / non-DASP
	Type of account + account-holder name	Required	Required
Transaction	Date + transaction identifier (incl. sending / receiving addresses)	Required	Required
	Reference numbers functioning as account number	Required	Required
	Exchange rates used and their source	Required	Required

PSAV-side sources (stacked): Instr. Art. 84-B(1)(e) (Reform 1) — preserve origin/destination of VA operations + Instr. Art. 52 par. 2 (Reform 2) — minimum data set on every electronic transfer regardless of threshold.. Art. 52 par. 2 (Reform 2) (R.16 imported) + Instr. Art. 52 par. 2 final (Reform 2) (collect regardless of amount). Traditional-wire sources: UIF Instr. Art. 52 (international / local electronic wires ≥ US\$1,000; remittances ≥ US\$200). If a counterparty VASP cannot transmit the full set, hold, document, escalate. Persistent gaps with a specific counterparty → risk-rating downgrade and possible relationship termination.

8. Framework D — Reporting thresholds (Operaciones Reguladas)

Thresholds are cumulative and independent of suspicion. Crossing any of them triggers a mandatory Operación Regulada to UIF within 5 business days. Do not confuse with STR (Framework E) — different trigger, different clock (24 h from determination), any amount.

8.1 Statutory thresholds — UIF Instructivo Art. 51

Means	Single op	Monthly aggregate (same client)	Deadline
Cash	> US\$10,000	> US\$10,000 / calendar month	5 bd
Other means (wire, cheque, digital asset)	> US\$25,000	> US\$25,000 / calendar month	5 bd

8.2 Decision tree

OPERATION PROPOSED OR EXECUTED
├ Single op · cash · > US\$10,000 ?
├ └ YES → Operación Regulada to UIF within 5 bd
├ Single op · other means · > US\$25,000 ?
├ └ YES → Operación Regulada to UIF within 5 bd
├ Monthly aggregate · cash · > US\$10,000 (same client) ?
├ └ YES → Operación Regulada · 5 bd after month-end
├ Monthly aggregate · other means · > US\$25,000 ?
├ └ YES → Operación Regulada · 5 bd after month-end
├ Splitting pattern below thresholds?
├ └ YES → Framework E (suspicion) – analyse and likely STR
├ Other suspicion indicator regardless of amount?
├ └ YES → Framework E (suspicion)
└ Otherwise → no report; retain; continue monitoring

8.3 Report vs transaction — separation of duties

Event	Reporting	Block transaction?
Over Art. 51 threshold, no suspicion	Operación Regulada · 5 bd	No — proceed if CDD and sanction checks clean
Over Art. 51 + suspicion	Operación Regulada (5 bd) and STR (24 h)	CO decides; no tipping-off
Below Art. 51 + suspicion	STR (24 h). No Operación Regulada.	CO decision on hold
Structuring signs below threshold	Internal analysis → likely STR	Hold for analysis

PSAV-specific reporting threshold — status

Neither the AML Law nor the Instructivo set PSAV-specific Operación Regulada thresholds — Art. 51 is the general rule, no carve-out.

Pending Reglamento

The LECLDA Art. 15(b) → Instr. Art. 52(a)(b) US\$1,000 is a binding *CDD-trigger for occasional transactions* (§5, §6), not an Operación Regulada threshold. The two obligations are independent — keep them distinct in policy.

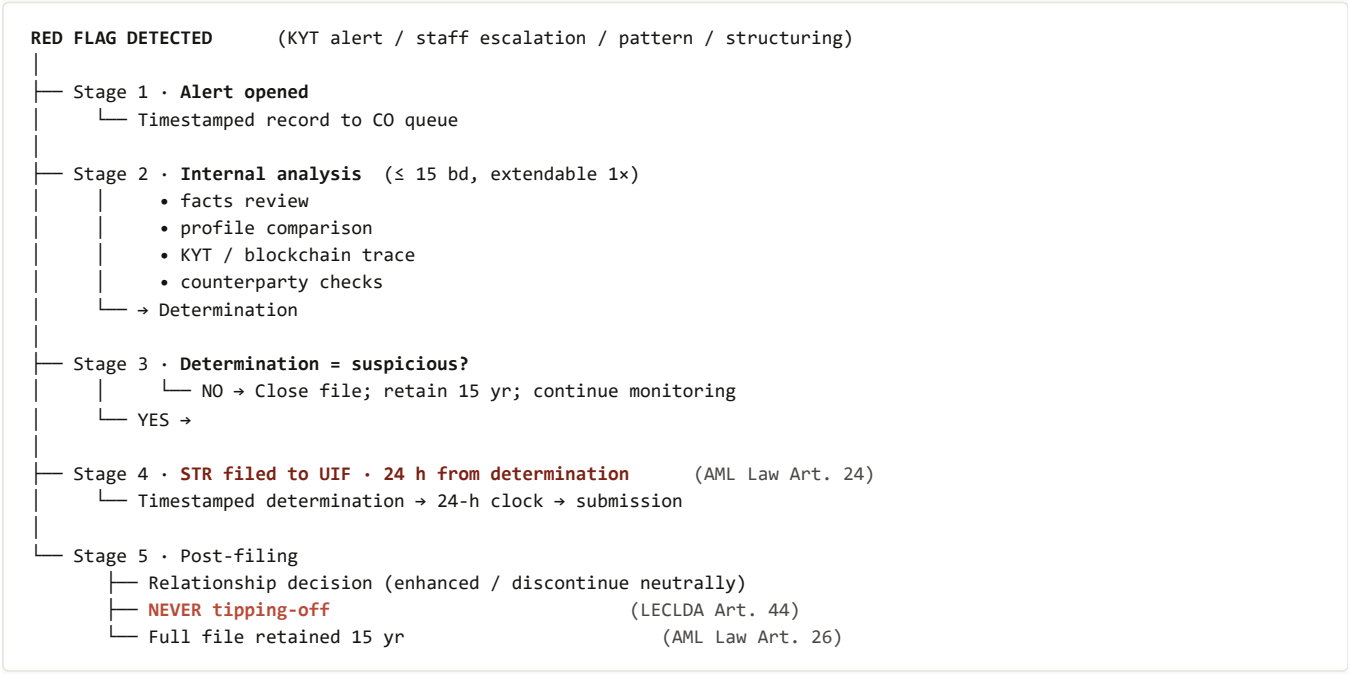
Art. 52 monthly transfer / remittance reports — DO NOT FILE as PSAV

Art. 52(a)(b)(c) "reportes complementarios" — international + local e-transfers ≥ US\$1,000 + family remittances ≥ US\$200 — bind **"las instituciones financieras"** only. UIF official FAQ on Reportaría de Operaciones Reguladas confirms FI scope. PSAVs file STR (ROS PSAV form) + Operación Regulada (Art. 51 cash > US\$10K / other > US\$25K) per **Art. 84-C scope**. The US\$1,000 figure is relevant only as the LECLDA Art. 15(b) CDD-trigger anchor + Travel Rule data threshold — not as a PSAV monthly report obligation. Sources: UIF FAQ Operaciones Reguladas · UIF Estudio Estratégico PSAV (2023) · Acuerdo 476/2023.

9. Framework E — Suspicious activity flow

From detection to STR filing. Two clocks run: internal analysis (≤15 bd, one extension) and, post-determination, 24 hours to file. No tipping-off at any stage.

9.1 Decision tree



Clock conflict — filing deadline

AML Law Art. 24 — 24 h from determination. UIF Instr. Art. 43 — 5 bd from determination. Law prevails. **Operational posture:** file within 24 h and log the determination timestamp. A determination without a recorded time is effectively undated — file on the day of determination to remove ambiguity.

9.2 Attempted operations

Operations the client attempts but does not consummate are reportable if suspicious. Same flow. UIF Instr. Art. 47

9.3 Red-flag families for PSAV (non-exhaustive)

Family	Example flags
Client behaviour	Reluctance on CDD; nervous on source of funds; third party operating the account; repeated questions about thresholds; document inconsistencies.
Transaction pattern	Rapid in-out of fiat; splitting around Art. 51 thresholds; many small deposits aggregating; round-tripping; sudden volume spike inconsistent with profile.
Counterparty risk	Wallet flagged by KYT; mixer / tumbler exposure; darknet exposure; high-risk jurisdiction; unhosted wallet with no economic rationale.
Asset signals	Attempted privacy-coin use; newly issued tokens with opaque issuer; tokens linked to sanctioned protocols.
Documentation	Forged ID, fabricated invoices, inconsistent addresses, suspicious source-of-funds narrative.

Tipping-off — the operational line

No disclosure to client, counterparty, family or any third party (other than UIF, FGR, supervisor and counsel under privilege) about: existence of analysis; filing or non-filing of STR; UIF requests; freezes; investigation. Including indirect signals — closing the account with an AML reason, hinting, replying to client queries. Decline or delay with a neutral ground ("documentation pending") and never mention analysis or reporting. LECLDA Art. 44

10. Framework F — Sanctions, UNSC & PEP screening

Three lists, three moments: onboarding, every transaction, periodic sweeps on list updates. Outputs: clean / PEP / sanction match — each has a defined action.

10.1 The three lists

List	Status in Salvadoran law	When to check	On hit	Source
UNSC lists (1267, 1373, 1988, 2231, 1718 + successors)	Binding via LECAT	Onboarding, every transaction, on list update, periodic sweep	Freeze + UIF report without delay + no tipping-off	LECAT Art. 37 UIF Instr. Arts. 27–35
National designated lists (UIF / FGR publications)	Binding	Same as UNSC	Same as UNSC	UIF Instr. Arts. 27–35
PEP lists (domestic / foreign / int'l org)	Binding EDD trigger, not a sanction	Onboarding, periodic review, on role change	EDD + senior-mgmt approval + enhanced monitoring	UIF Instr. Arts. 16–18

OFAC / EU / UK — status

OFAC, EU and UK sanctions are **not Salvadoran law**. They matter through (i) contracts with correspondent banks, (ii) US-nexus (USD corridors through US banks), (iii) operational risk management. If the DASP uses USD corridors routed via US correspondents, OFAC compliance is *de facto* required — but under contract and private risk management, not AML statute. Manage them in the commercial-risk framework, not in the AML policy body.

10.2 PEP decision tree

Input	Condition	Action	Source
Self-declaration + screening	Domestic PEP / foreign PEP / int'l-org PEP	EDD. Senior-mgmt written approval. SoF + SoW documented. Enhanced monitoring.	UIF Instr. Arts. 16, 17
Family / close associate	Up to 2nd degree consanguinity / affinity; close business assoc	Same as PEP	UIF Instr. Art. 18
Post-cess	Ceased <5 years ago	Still PEP — full EDD	UIF Instr. Arts. 16–18
Post-cess	Ceased >5 years, no residual risk	Standard CDD unless other EDD trigger	UIF Instr. Arts. 16–18

10.3 Freeze procedure on UNSC / national hit

1 Match confirmed
(not a false positive after basic verification). Record source, timestamp, evidence.

2 Immediate freeze
of funds, wallets, pending operations.

3 Report UIF without delay
via official channel, with the match record and frozen amount. LECAT Art. 37 ¶ 3

4 No tipping-off
: do not explain the hold; do not return funds unless UIF / judicial authorisation. LECLDA Art. 44

5 Cooperate
with UIF / FGR information requests. Retain file 15 yr.

11. Framework G — Ongoing compliance calendar

Year-round view of statutory obligations with fixed cadence. The CO holds these as hard dates; missing a window = administrative sanction.

11.1 Fixed-cadence obligations

Cadence	Obligation	Deadline	Source
Annual	Training plan approved by Board	By 31 December of prior year	UIF Instr. Art. 54
	Internal AML audit	At least once per calendar year	UIF Instr. Art. 8
	BO information refresh — active clients	Rolling, at least once per year	UIF Instr. Arts. 13, 20
Quarterly	Prevention Committee session	Quarter-end	AML Law Art. 23 UIF Instr. Art. 68
	Sanctions / PEP list refresh (system)	Quarterly + on any list update	UIF Instr. Arts. 27–35
Monthly	Aggregate threshold sweep (Art. 51)	Within 5 bd after month-end if crossed	UIF Instr. Art. 51
	Alert backlog review by CO	Month-end	UIF Instr. Art. 42

11.2 Event-driven obligations

Event	Deadline	To	Source
CO / Deputy CO appointment	15 bd from appointment	UIF	UIF Instr. Arts. 7(m), 64
CO / Deputy CO removal	5 bd from removal	UIF	UIF Instr. Art. 7(m)
Material change to registration documents (DASP)	5 bd	CNAD	RPSAD Art. 9
BO / registration-data change (AML side)	15 bd	UIF	UIF Instr. Art. 3
Operación Regulada (Art. 51 crossed)	5 bd	UIF	UIF Instr. Art. 51
STR after determination	24 h	UIF	AML Law Art. 24
UNSC / national list freeze	without delay	UIF	LECAT Art. 37 ¶ 3
New hire — AML induction	Before operational duties begin	(Internal)	UIF Instr. Art. 55

11.3 Retention

All AML records — CDD, transactions, analyses, STR, training, audits, committee minutes — retained **15 years** from relationship end or operation date. Accessible to UIF on request. AML Law Art. 26 UIF Instr. Arts. 57–59

12. CDD refresh triggers

Besides the scheduled refresh (SDD 5 yr / Standard 3 yr / EDD 1 yr), the following events trigger an immediate out-of-cycle refresh of the CDD file. Miss a trigger → stale file → supervisory finding.

12.1 Immediate-refresh triggers

Event	Refresh scope	Deadline	Source
Change in ownership ≥10% (entity)	Full BO chain re-verification	On detection	UIF Instr. Arts. 12, 20
Change in authorised signatories	IDs + powers	On detection	UIF Instr. Art. 20
Change of residence / registered jurisdiction	Jurisdiction risk + address verification	On detection	UIF Instr. Art. 14-A
Change in beneficial owner (trust party change, nominee change)	Full BO file	On detection	UIF Instr. Arts. 20, 21
Material deviation from declared activity profile	Source-of-funds re-documented; KYT review	On detection	UIF Instr. Art. 14-A
UNSC / national list update naming the client or a related party	Immediate re-screen; if match, Framework F	On update	LECAT Art. 37
PEP status change (appointment / cease)	Re-check and re-classify DD level	On detection	UIF Instr. Arts. 16–18
Material change in product / channel used by client (e.g. first cross-border, first unhosted wallet)	Risk-scoring re-run; possible DD level escalation	On detection	UIF Instr. Art. 13
Adverse media / law-enforcement information on client or related party	Full review; CO determination	On detection	UIF Instr. Art. 13
Regulatory request (UIF / CNAD information demand)	As directed	As directed	AML Law Art. 25
Internal audit finding	As scoped by audit plan	Per action plan	UIF Instr. Art. 8

12.2 Scheduled refresh (baseline)

Level	Baseline cycle
SDD	Every 5 years
Standard	Every 3 years
EDD	Every year (half-yearly if score ≥15)

Trigger refreshes override cycle refreshes — the next full refresh resets the cycle clock only if scope overlap is total. Partial refreshes (e.g., BO only) do not reset the full-file cycle.

13. Escalation matrix

Who escalates what to whom, by what deadline. The CO is the hub; the Board is the last resort for systemic issues; UIF and CNAD are the external lanes. Keep the matrix short and signed by the Board — it is the single source of truth when an alert fires at 22:00.

From	To	Trigger	Deadline	Evidence
Analyst / teller / first-line	Deputy CO	Any alert, any KYT red flag, any CDD gap, any refusal by client	Same business day	Ticket with timestamp in CO queue
Deputy CO	CO	Any red flag above routine; PEP decision; EDD continuation; all list hits	Same business day	Analysis note
CO	Prevention Committee	Material alerts batch; STR decisions; list hits summary; audit findings; regulatory interactions	Next committee meeting ($\leq$ quarter)	Committee pack with minutes
CO	Board of Directors	Systemic issues; very-grave findings; CO change; material supervisory letters; resource constraints impairing AML compliance	Next Board meeting; immediate for serious events	Board memo with action plan
CO	UIF	STR (24 h post-determination); Operación Regulada (5 bd); list-hit freeze (without delay); data updates (15 bd); CO appointment (15 bd Board notification per Art. 7(m) + 5 bd CO own registration per Art. 64) / removal (5 bd)	As per event	Official UIF channel submission
CO / General Counsel	CNAD	Material change to registration; AML-policy update requiring CNAD notice; cybersecurity incidents impacting AML controls	5 bd	CNAD channel submission
CO	External counsel / external auditor	Interpretive questions; UIF / CNAD disputes; sanctions questions with extraterritorial elements; significant change-of-control	Without delay	Counsel memo, privileged
Any employee	CO (direct line)	Suspected internal violation; coercion to breach AML; tipping-off occurrence	Immediate	Whistleblowing log; Board copy under seal

Out-of-hours rule

UNSC / national list hit or STR determination out-of-hours → CO on-call is reached by phone; the deadline clock does not stop for weekends or holidays on STR (24-hour wall clock). Committee and Board lanes respect business-day cadence; UIF reporting lanes use the statute's wall-clock (24 h) or business-day (3 / 5 / 15 bd) as applicable.

14. Scenario walkthroughs — standard cases

Six standard scenarios showing the frameworks in action. For each: inputs → framework lookups → action → verdict.

14.1 Natural person · US\$900 occasional fiat→crypto swap

Inputs: walk-in Salvadoran resident; buys BTC for US\$900, one-off; pays by bank card; no ongoing relationship.

§4 Perimeter: BTC on the authorised list → pass.

§5 DD: no EDD trigger; occasional transaction under US\$1,000 → below LECLDA Art. 15(b) → Instr. Art. 52(a)(b) CDD trigger; SDD-eligible light-touch (practice) within Art. 12. Travel Rule still applies to the DA transfer regardless of amount (§7). → **SDD (practice)** with Travel Rule.

§6 Docs: gov photo ID; self-declared address and occupation; source-of-funds declaration; PEP self-declaration.

§7 Transaction: UNSC / national / PEP re-screen → if clean, collect full Travel Rule set; KYT on destination wallet.

§8 Threshold: below Art. 51 single and monthly — no Operación Regulada (unless aggregation crosses later).

§9 Suspicion: none in fact pattern; hesitation on source of funds / questions about thresholds → escalate.

Verdict: proceed with Standard-light CDD + Travel Rule + KYT. No mandatory report. Retain 15 years. Monitor aggregation.

14.2 Natural person · new ongoing relationship · US\$5,000 monthly

Inputs: resident employee opens account for monthly salary-to-stablecoin conversions; expected US\$5,000 / month.

§5: ongoing relationship → full CDD from start; no EDD trigger → **Standard CDD**.

§6: gov ID; address proof (utility ≤3m); employer & occupation documented; NIT; SoF (payslip / employer letter); expected profile (~US\$5K/m, 1–2 ops/m); PEP declaration.

§7: per transaction — re-screen + full Travel Rule + KYT; unknown destination wallets → additional questioning.

§8: below US\$25K monthly — no Operación Regulada unless pattern shifts.

§9: monitor against profile; a spike (e.g. US\$30K in a month) without explanation → analysis.

§11–12: refresh cycle 3 years; out-of-cycle refresh on profile / jurisdiction / activity change.

Verdict: open under Standard CDD with calibrated monitoring. Retention 15 yr.

14.3 Natural person · PEP onboarding attempt

Inputs: former domestic minister (ceased 2 yr ago); wants ongoing relationship; declared profile US\$2,000 / month; declared source: post-government consulting fees.

§5: former PEP within 5 y → still PEP → **EDD**.

§6: two gov IDs; verified address; documented occupation (consulting agreements); NIT; full SoF (consulting invoices, bank statements) + SoW (asset declaration, deeds if material); expected scenarios; PEP file with source list; senior-mgmt written approval; enhanced-monitoring flag.

§10: every transaction re-screened; KYT mandatory; family ≤2nd-degree and close associates screened as PEP-related.

§12: annual EDD refresh; PEP status re-checked each year.

Verdict: proceed only with full EDD and written senior-management approval. If declined (risk appetite), neutral-reason decline — never cite PEP status.

14.4 Legal entity · US\$50,000 monthly with layered ownership

Inputs: Salvadoran S.A. de C.V., 60% Panama holding + 40% two locals; Panama holding owned by a BVI trust; expected US\$50,000 / month in stablecoins for supplier payments; business: consumer-electronics import.

§5: legal entity + cross-border multi-layer + trust in chain + monthly above Art. 51 → **EDD**.

§6: deed, registry extract ($\leq 3m$), NIT, operating licence; Board resolution; shareholder register ($\geq 10\%$); full chain to ultimate natural BO through Panama + BVI trust (settlor / trustee / beneficiaries / protector); signatory IDs; business purpose + counterparties; audited financials; ownership chart signed by director; SoF per BO; written senior-mgmt approval; enhanced monitoring.

§7: per transaction re-screen of counterparties; full Travel Rule, no floor; KYT on supplier wallets (allowlist after vetting); new counterparties → extra questioning.

§8: monthly aggregate US\$50K > US\$25K threshold → Operación Regulada within 5 bd of month-end. Single ops > US\$25K → individual reports within 5 bd.

§9: KYT against declared profile; sudden counterparty-geography shift / volume surge / deviation → analyse.

§12: annual EDD refresh; quarterly BO re-confirmation given the chain.

Verdict: open under full EDD with mandatory Operación Regulada filings. BO documented to ultimate natural person via trust chain (10% + 25% thresholds). Full Travel Rule on every transfer regardless of amount.

14.5 UNSC list hit during screening

Inputs: at onboarding, prospect matches UN 1267 list; verification confirms not false positive.

§10: match confirmed → reject relationship; if funds received, immediate freeze, no outflow.

Reporting: UIF report without delay with match record, source list, timestamp, frozen amount (or zero). **LECAT Art. 37 ¶ 3**

Tipping-off: no explanation beyond "unable to open the relationship". No third-party disclosure. No fund return absent UIF / judicial authorisation. **LECLDA Art. 44**

Retention: full file 15 yr.

Verdict: rejected · reported without delay · frozen if applicable · tipping-off discipline strict.

14.6 Ongoing monitoring · structuring pattern

Inputs: Standard-CDD client; declared profile US\$3,000 / month. Over 3 weeks: 9 ops of US\$2,700 from 3 different cards to 3 destination wallets.

§9 Stage 1: KYT alert opens; timestamped to CO queue.

Stage 2 (≤ 15 bd): CO analysis — profile comparison, blockchain trace on 3 wallets, KYT report, counterparty risk. Client communication limited to neutral operational-doc queries; never mention analysis.

Stage 3: signed, dated determination line: "Suspicion confirmed — structuring pattern; destination wallets show mixer exposure — at [ISO timestamp]".

Stage 4: STR to UIF within 24 h of determination. **AML Law Art. 24**

Stage 5: relationship decision (enhanced or discontinue with neutral ground); tipping-off prohibited; file retained 15 yr.

Verdict: alert → 15-bd analysis → determination → 24-h STR → retention. Never discuss with client.

15. Scenario walkthroughs — edge cases

Six cases where the rule is not obvious. These are the ones analysts bring to the CO. Resolve each via the frameworks and the conflict logic.

15.1 Walk-in · exactly US\$999 — the grey zone

Inputs: one-off purchase at exactly US\$999, by bank card; new walk-in.

§8 threshold: below Art. 51 everywhere — no Operación Regulada.

§7 Travel Rule: PSAV Art. 84-B(1)(e) + Instr. Art. 52 par. 2 (Reform 2) + §2 final CAPS — **no floor**, full data required.

§5 DD: below the LECLDA Art. 15(b) → Instr. Art. 52(a)(b) US\$1,000 trigger by US\$1. Two readings: (a) below trigger → SDD formally available; (b) the round-number proximity is itself a mild red flag (structuring-aware clients). Conservative posture — apply full CDD (Instr. Art. 12) even though the Instructivo does not strictly require it at US\$999.

§9: if the client returns the next day with another US\$999, that is a pattern — open analysis.

Verdict: full Travel Rule; Standard-light CDD; log proximity to the expectation line and watch aggregation. Single US\$999 alone is not suspicious by itself.

15.2 Client asks to split US\$15,000 into 3×US\$5,000 same day

Inputs: existing Standard-CDD client asks to execute three US\$5,000 transfers on the same day citing "system limits".

§8: "other means" single threshold is US\$25,000 — none of the three crosses; the aggregate also does not cross Art. 51 on its own. *But:*

§9: deliberate split into equal parts below any visible threshold, on the same day, is a textbook structuring indicator. Open internal analysis even though no Art. 51 line triggers.

Operational step: request documented business reason for the split; do not refuse outright unless analysis so dictates; never reveal the AML concern (tipping-off).

Verdict: open internal analysis (≤15 bd); collect business rationale; if not satisfactory → STR within 24 h of determination. Execution may proceed or be held per CO decision; in either case, tipping-off prohibited.

15.3 Existing client moves to a high-risk jurisdiction

Inputs: ongoing Standard client notifies change of residence to a UIF-listed high-risk jurisdiction.

§12 refresh trigger: change of residence → immediate refresh. UIF Instr. Art. 14-A

§5 re-scoring: jurisdiction factor flips from green/amber to red → DD level escalates to **EDD**.

§6: collect new address verification, re-document SoF / SoW, re-screen against jurisdiction-specific sanctions; senior-management written approval to continue.

§10: increased screening frequency; KYT on every transaction.

Verdict: not a rejection per se — but EDD with senior-management sign-off, or discontinue under neutral ground if risk appetite does not allow.

15.4 NGO / charity onboarding

Inputs: domestic NGO (foundation) wants to use the DASP for cross-border donor fund receipts and disbursements; expected US\$20,000 / month.

§5: NGOs are a recognised high-risk segment for terrorism-financing exposure (a standard Salvadoran-UIF concern under LECAT). Jurisdiction of donors + disbursement recipients can be red. Expected amount near but under monthly threshold. → **EDD**.

§6: escritura; registry (NGOs are often under a specific regime — Ministerio de Gobernación or similar); Board resolution; governance bodies; identification of directors, key beneficiaries, disbursement counterparties; purpose documentation; sample donor list; SoF (donor agreements); financial statements.

§7: full Travel Rule on donor inflows and disbursements; KYT on all wallets involved; allowlist / blocklist of disbursement counterparties.

§8: monitor aggregation to Art. 51 thresholds; NGOs often cross them — anticipate Operación Regulada filings.

§9: pattern deviations, atypical disbursement destinations → analyse.

Verdict: EDD with documented governance, donor / disbursement review, and ongoing KYT. Senior-mgmt approval. If NGO refuses donor transparency → decline neutrally.

15.5 Corporate wants to pay for a third-party individual

Inputs: existing corporate EDD client instructs the DASP to send crypto to a wallet belonging to a natural person who is *not* the corporate, its employee, or a documented supplier — framed as "a personal favour for the CEO".

§9 red flag: third-party beneficiary unrelated to the declared business purpose is a primary red flag — "person acting for a third party" on the beneficiary side.

§7: Travel Rule data on the beneficiary collected — including the CEO-beneficiary relationship; KYT on the wallet.

Operational step: do not execute on informal instruction. Require Board / senior-management documented authorisation evidencing the corporate purpose of the outflow (loan agreement, salary advance, service contract, gift documented as such) and consistent accounting treatment. Without that, the transaction does not match declared profile → hold and analyse.

§9: if the corporate cannot supply a legitimate business rationale → determination of suspicion → STR within 24 h.

Verdict: execute only against documented corporate authorisation and SoF-matching rationale. Otherwise hold, analyse, and file STR if determination is suspicious. Tipping-off prohibited at every step.

15.6 Fiat on-ramp → bridge to DeFi · unhosted wallet

Inputs: Standard-CDD individual client buys USDC for US\$3,000 and instructs transfer to an unhosted wallet, which (per KYT) immediately routes into a cross-chain bridge to a DeFi protocol.

§7 Travel Rule: PSAV-side full data collected from client and declared about the destination wallet. For unhosted wallets, self-declaration of beneficiary data is standard operational practice; the counterparty VASP lane does not exist.

§10 KYT: bridge / DeFi exposure is not itself a sanction, but it is a risk factor (tracing becomes harder post-bridge). Check bridge for sanctioned-protocol flags.

§5 re-scoring: first-time unhosted-wallet use bumps product / channel from green to red → re-score → may flip to EDD if cumulative score crosses 10.

§9 analysis: if bridge or downstream protocol is flagged, or pattern is repeat cross-chain velocity → open analysis.

Verdict: allowed in principle but documented per-transaction; repeated unhosted-bridge pattern warrants EDD escalation and, if risk appetite declines, relationship review. Privacy-coin leg downstream would be a hard stop.

16. Common supervisory findings · do-not-do list

Recurrent UIF / CNAD observations on other obligated entities. Each is avoidable. Every line here is a concrete behaviour the CO can ban internally.

#	Finding	Root cause to avoid	Fix discipline
1	STR filed after 24 h	No timestamp on determination; confusion with 5-bd Instructivo line	Every analysis file ends with a dated signed determination; 24-h clock ticks from there; default to same-day filing.
2	Determination without timestamp	Verbal sign-off; absent paper trail	Template enforces a "determination" field with ISO timestamp and signature.
3	BO identified only to a 25% legal entity layer — never to a natural person	Stopping at the first corporate owner	File always resolves to a natural person; trust chains opened; nominee arrangements exposed.
4	Persistent Travel Rule data gaps tolerated with specific counterparty	Commercial friction avoidance	Gap log; after N failures → counterparty flagged or terminated.
5	Training records without attendance, evaluation or dated material	Tick-box training	Sign-in sheet + evaluation + materials version-dated + CO sign-off.
6	Training plan not Board-approved by 31 December	Calendar slip	Plan is annual Board-pack item for Q4.
7	Internal audit skipped or cosmetic	Independence compromised; audit performed by CO's team	Independent internal audit; Board receives report and tracks action plan.
8	CO appointment / removal notified late to UIF	HR-Compliance handoff gap	HR triggers CO-notification sub-workflow; 15 bd / 5 bd respectively.
9	Missed monthly aggregation under Art. 51	System captures single ops only	System job at month-end aggregates per client per means and flags breaches.
10	Client told "we closed your account for AML reasons"	Well-intentioned employee; poor training on tipping-off	Decline / close scripts use neutral grounds only; LECLDA Art. 44 briefings quarterly.
11	Decline reason reveals analysis ("sanctions match")	Same	Scripted neutral response ("eligibility review") + CO sign-off on any non-scripted decline.
12	PEP continued relationship without senior-mgmt written approval	Approval verbal or implicit	PEP workflow halts until written approval captured.
13	EDD file stale — >1 year since refresh	Refresh cycle not tracked	EDD dashboard with next-refresh dates; monthly CO review.
14	Privacy coin accepted or tolerated as incoming exposure	Weak perimeter enforcement	Perimeter whitelist enforced at the protocol layer + KYT alert on inbound privacy-coin trace.
15	Unhosted wallet accepted without compensating controls	No distinction in CDD for unhosted counterparties	Per-transaction self-declaration + KYT + DD level bump on first unhosted use.
16	Committee meetings without minutes or without CO attendance	Informal cadence	Quarterly Prevention Committee with signed minutes; CO's attendance logged.
17	Records archived in inaccessible form / destroyed before 15 yr	IT retention policy misaligned	AML records carve-out in retention policy; retrievable on UIF request.
18	CNAD material change notified late	AML / corporate lanes siloed	Material-change register cross-checked by CO and General Counsel monthly.
19	Asset perimeter drift — marketing an asset not in the registration file	Product team faster than Compliance	Product-launch gate requires CO sign-off for any new asset; material-change notice to CNAD before marketing.
20	STR template content thin — "client operates unusually"	Time pressure, template unclear	STR template demands facts, timeline, KYT outputs, counterparty data, determination rationale.

17. VASP-specific framework — Chapter IV-B layered onto the general regime

UIF Instructivo Reform 1 added Chapter IV-B (Arts. 84-A / 84-B / 84-C) for Providers of Virtual Asset Services (VASPs / DASPs / BSPs). It does **not** set separate amount thresholds — it adds three VASP-specific layers on top of the general DD architecture: own-platform transaction-limit policies (*lex specialis*), a pre-relationship identity gate (Art. 12 Reform 2), and the VASP Travel Rule anchor.

17.1 Six-layer stack

#	Layer	Threshold	Anchor
1	Identity gate — verification before relationship begins; relationship cannot start without it	\$0	Instr. Art. 12 last par. (Reform 2)
2	Statutory CDD floor for occasional transactions (DASP)	\$10K cash · \$25K other; verification ≥ \$1K (FATF Rec 16)	LECLDA Art. 15(b) → Instr. Art. 51
3	Ongoing-relationship CDD from day 1	\$0	LECLDA Art. 15(a) Instr. Art. 12
4	VASP internal transaction-limit policies — <i>lex specialis</i> ; VASP must publish own limits in AML manual, calibrated to CDD/risk	Set by VASP, ≤ statutory floor	Instr. Art. 84-B(1)(b) Reform 1
5	EDD escalation on any risk factor	Any amount	LECLDA Art. 15 ¶ 4 + Art. 19 (PEP) Instr. Art. 13(c) Reform 2
6	Travel Rule data — 7 fields on every electronic VA transfer	\$0	Instr. Art. 84-B(1)(e) Reform 1 + Art. 52 par. 2 Reform 2

Operational logic — why \$1,000 drives Travel-Rule verification

At US\$1,000 the Travel-Rule verification duty attaches (FATF Rec 16 → D-426 Art. 25): the transfer must carry originator name + ID type/number + account/wallet + beneficiary fields + transaction ID, with the originator's identity verified. Its legal weight differs by track — **black-letter** for the Bitcoin/BSP track (BCR Normas Técnicas Art. 50), and for other digital assets the **FATF Rec 16** standard applied via D-426 Art. 25's delegation, a *prudent operating threshold pending the new Reglamento*. Travel-Rule data is collected on every transfer from \$0 (Instr. Art. 84-B(1)(e)); *verification* attaches from \$1,000. The \$200 remittance and \$1,000 bank e-transfer figures (Art. 52) are FI-side — they do not bind the DASP directly.

17.2 \$125K monthly aggravator — RPSAD Art. 22

Independent of the CDD/EDD ladder, RPSAD imposes a VASP-specific aggravating-risk threshold. Any client crossing US\$125,000 in cumulative monthly capital injections triggers:

- **Increased surveillance** by the VASP (KYT intensified, monitoring cadence reduced)
- Client **explanation of source of funds** supported by documents (not declarative)
- **Electronic affidavit** by client on lawful origin
- **Issuer identification** for any DA involved (name, LRU address, contact)
- Threshold reviewable annually by CNAD or on material business change

Operates as an aggravator on top of the existing DD level — does not replace SDD/CDD/EDD selection but adds documentary requirements for that month's flow.

RPSAD Art. 22

17.3 DD on occasional VASP transactions

A transaction in digital assets is its own category under **D-426 Art. 25**, distinct from a "transferencia electrónica" — so the Art. 14-A(III) electronic-transfer trigger addresses fiat rails. For digital assets, DD triggers at relationship start, on occasional transactions above the reporting thresholds (Instr. Art. 51 — \$10K / \$25K), on suspicion, and on doubts (D-426 Art. 15 / Instr. Art. 14-A). The level of DD (SDD / Standard / EDD) is determined by risk; Travel-Rule data applies from \$0, verification from \$1,000.

Scenario (occasional)	DD level	Required
E-tx < \$1,000 + low-risk + no PEP / HR jur / opaque ownership	SDD	Basic ID + sanctions/PEP screen + Travel-Rule fields (from \$0). Lighter scope (no biometric / no full doc auth); document verification deferrable below \$1,000 (FATF Rec 16). Suspicion overrides.
E-tx ≥ \$1,000 (verification — FATF Rec 16 → D-426 Art. 25) OR cash > \$10K OR other > \$25K	Standard	Full identification + verification immediate + BO chain (≥10%) + risk profile + SoF declared + report submission. (\$200 family remittance is FI-only — not a DASP trigger.)
Any amount + risk factor (PEP / HR jur / opaque / structuring / flagged wallet / 3rd-party / adverse media)	EDD	Standard CDD + senior-mgmt approval + documentary SoF + SoW + KYT every transaction + annual EDD refresh.
Any amount + suspicion	CDD + STR	Full CDD + STR pipeline (24h after determination). SDD not acceptable.

SDD for occasional ≠ SDD for ongoing. Art. 14 measures (deferred verification, reduced update frameworks, reduced monitoring, inferred purpose) are written around *commercial relationships*. For occasional, "SDD" means lighter scope (basic ID + screening + Travel Rule), with verification concurrent but reduced.

17.4 PSAV due diligence — risk-based (D-426 Art. 15 / Instr. Art. 12-14-A)

Beyond the general LECLDA Art. 15 framework, the UIF Instructivo (Capítulo IV-B, Arts. 84-A/B/C) applies a **risk-based due-diligence model**. There is no per-amount DD cascade; the diligence level is graduated by client risk, not by transaction amount.

Client risk / context	DD level	What this means
Default — all clients	Estándar (Standard CDD)	Baseline diligence (D-426 Art. 15 / Instr. Art. 12): ID + verification + BO ≥ 10% + risk profile + sworn SoF + PEP self-declaration.
Low-risk, occasional e-tx < US\$1,000	Simplificada (SDD)	Lighter scope — basic ID + sanctions/PEP screen + Travel Rule; verification deferrable (Instr. Art. 14; FATF Rec 16). Not available on suspicion or higher-risk scenario.
High-risk client / factor (any amount)	Intensificada (EDD)	Triggered by risk — PEP, opaque ownership, high-risk jurisdiction, structuring, adverse media (Instr. Art. 13): documentary SoF + SoW + senior-management approval + KYT. Regardless of amount.

Standard CDD is the default for all clients (D-426 Art. 15 / Instr. Art. 12). Electronic transfers ≥ US\$1,000 require full Travel-Rule originator/beneficiary verification (BCR Normas Técnicas Art. 50). Risk factors (PEP / suspicion / high-risk jurisdiction / structuring) escalate to EDD regardless of amount (Instr. Art. 13). DD is triggered at relationship start, on occasional transactions above the reporting thresholds, on electronic transfers, and on any suspicion (Instr. Art. 14-A).

17.5 PSAV reporting framework — Instr. Art. 51 / 84-C

Report	Frequency / Threshold	Anchor
Operación Regulada PSAV (via goAML — 6 PSAV forms)	5 bd	Instr. Art. 51 / 84-C
ROS — operación sospechosa	24 h · any amount	D-426 Art. 24
Notificación de ausencia de operaciones (if no operations in month)	Monthly	Instr. Art. 84-C
STR + Operación Regulada	Per LECLDA / Instr.	cross-cited

Filing via the six goAML PSAV forms: Cajero Electrónico · Compraventa con Wallet · Intercambio de Criptoactivos · Tarjeta a Wallet · Wallet a Cuenta · Wallet a Wallet. The applicable form depends on the operation type.

18. Cessation & Wind-down — RPSAD Arts. 38–39

Two cessation types. Same request procedure with CNAD; differences in scope, timing and downstream obligations. Wind-down plan must protect client assets (return digital assets and fiduciary money to owners). Distinguish from auto-cancellation paths under Arts. 14 + 40.

18.1 Two cessation types

Type	Required filing	Window	Outcome
Temporary (pause + resume)	Action plan: cessation date + planned resumption date; procedures to protect + refund client assets on request	Max 20 bd suspension	Mandatory resumption within window; failure → conversion to definitive cessation grounds
Definitive (permanent exit)	Date of cessation + liquidation plan for assets and employees + procedure to return DA + fiat to owners	≥ 20 bd execution (CNAD-set)	After window expires → CNAD orders ex officio cancellation ; all rights extinguished

18.2 CNAD procedure timeline

#	Action	Timing
1	VASP submits cessation request to CNAD (physical/electronic) with required contents	Initiated by VASP
2	If documentation incomplete → CNAD grants up to 10 bd to cure	10 bd
3	CNAD authorises or denies (temporary or definitive)	5 bd from complete filing
4	Execution window — VASP executes liquidation / temporary suspension per approved plan	≥ 20 bd (CNAD-set)
5	(Definitive only) CNAD orders ex officio cancellation; rights extinguished	Immediately after
6	AML records retained — survive corporate dissolution; custodian designation required	15 yr

18.3 Resolution Plan + auto-cancellation paths

Resolution Plan obligation — LEAD Art. 21(p) + Instr. Art. 84-B(9) Reform 1. Independently of an actual cessation, every VASP must **maintain a Resolution Plan** at all times — providing for orderly and solvent liquidation. CNAD requires this plan as part of registration documentation pack and reviews it during ongoing supervision. The Cessation procedure above is the operational execution of that pre-existing Resolution Plan.

Auto-cancellation paths (distinct from voluntary cessation):

- **Non-payment of annual renewal fee** within Q1 → automatic cancellation + automatic loss of LEAD Art. 36 tax benefits
RPSAD Art. 14(b) + Art. 12
- **CNAD precautionary trade suspension** — up to 20 bd, exhaustive inspection; if breach confirmed → sanction (LEAD Art. 38) + improvement plan or cancellation; if no breach → annulment, full rights restored RPSAD Art. 40

BSP-track parallel. If the entity also held a BSP registration with BCR, separate discontinuation notice is required: BSP must **immediately** inform BCR; BCR removes from Registry within **72 hours**. D-27/2021 Art. 3

19. Conduct & Operational Standards

RPSAD Arts. 17–37 set the conduct, ethics, disclosure, market-integrity and operational obligations that bind every DASP from go-live. CNAD reviews during ongoing supervision; breach can trigger sanction (LEAD Art. 38) or precautionary suspension (Art. 40).

19.1 Standards of conduct & good faith — Art. 17

Sub-item	Duty
(c)	Investor priority rule — first in time, first in law for purchase/sale managed on own account; no investor harmed
(d)	No commission abuse — clients not induced to operations for sole purpose of generating commissions
(e)	Price-formation transparency — avoid public disclosure of false / inaccurate / biased information about DAs
(f)	Cooperation with CNAD — collaborate with control and surveillance functions on lawful demand
(g)	Investment-recommendation discipline — variation to investor's detriment → notify investor + request instructions; presume DASP acts in best interest at best price

Sanction tier: breach of CNAD-set good-conduct / ethics standards → fine up to **114 minimum salaries** ($\approx$ \$46,603) per infraction **LEAD Art. 38(a)**

19.2 Code of Ethics — Art. 18

Each DASP must prepare a Código de Ética **within 6 calendar months of final registration**, available on LRU site or attached to offers. Required components:

- (a) General & specific principles for employee conduct · (b) Ethical standards for behaviour · (c) Conflict-of-interest policy (operations, investors, employees, directors, representatives) · (d) Fair-treatment policies for clients · (e) AML/CFT/CFP policies · (f) Non-pecuniary penalty regime for employees

CNAD may require modifications; supervision/implementation aspects communicated to CNAD; Ethics Committee complaints + decisions visible to CNAD.

19.3 Computer systems — Art. 20 (when operating platforms/wallets)

1. **(a)** Quick, correct, accurate settlement of all transactions
2. **(b) Electronic Book** — auditable record per transaction (date, type, users, amount)
3. **(c)** Permanent monitoring system — detect errors/failures + recover damaged/deleted info
4. **(d)** Mechanism to suspend/close accounts that breach T&Cs

19.4 LRU / website disclosure — Art. 23

All DA-related communication must be **at all times available** at the LRU address. Display rules: (a) clear & accessible; (b) not misleading; (c) third-party citation rule. Required URL contents (illustrative): T&Cs, contact info, SSF complaint channel notice, per-asset general explanation (interchangeability, current price, 12-month price history, current platform volume), custody/loan/deposit complementary products with regular updates, Code of Ethics, fee schedule, public wallet list.

19.5 Personal data protection — Art. 36

Strict-liability regime. VASP directly responsible for safeguarding acquirer/client/user personal information at all times. **On leak: VASP pays financial compensation to clients AND administrative fine.** No fault requirement. Operationalised through cyber controls + AML record-keeping (15 yr) + Code fair-treatment policy. AML manual must include leak-incident response procedure (compensation calc + CNAD notification).

19.6 Privileged-information regime — Arts. 24–26 (insider / market integrity)

Article	Rule
Art. 24	No DASP may operate with privileged info of issuers — refrain from: (a) acquiring/transferring DAs based on privileged info, own or third-party account; (b) recommending acquisition/disposal based on privileged info; (c) recommending order cancellation/modification based on privileged info
Art. 25	Accidental access to issuer's privileged info → exposed individual must disclose to CO; DASP may continue operations with affected issuer if exposed individual is prohibited from any operation with that issuer + sharing the info

Article	Rule
Art. 26	No DASP holding privileged info may communicate it to another person, except in normal exercise of work, profession or functions; document channel + recipient in case file

Hook: **LEAD Art. 21(k)** — DASPs must apply effective mechanisms to prevent price manipulation and maintain market integrity.

19.7 Investment refund obligation — Art. 37

48-hour refund window on force majeure. DASP guarantees investment within contracted term/conditions. On **fortuitous event or force majeure**: must terminate operation AND **credit client wallet within 48 hours** with funds delivered for the investment. Internal SLA must enable 48h restoration independent of CNAD review or external dispute resolution. Document force-majeure determination + wallet-credit confirmation in client file.

CNAD precautionary suspension — Art. 40 (cross-reference to §18)
Trigger: suspicion or complaint of breach. Max duration: 20 bd. CNAD notifies, conducts exhaustive inspection. Outcomes: breach confirmed → sanction + improvement plan; no breach → annulment + rights restored. Have an internal "trade-suspension response plan" (CNAD legal contact, client communication template, revenue-impact assessment, regulator engagement protocol).

20. Bitcoin Law D-57/2021 + Reform D-199/2025 — implications for the BSP track

El Salvador was the first country to make Bitcoin legal tender (D-57/2021, in force 7 Sept 2021). The Reform (D-199/2025, in force 30 April 2025) made acceptance voluntary and limited to private actors, derogated mandatory state acceptance + Chivo wallet alternatives, and ended tax payment in BTC. The BSP framework (D-27/2021 Reglamento) is **unaffected**.

What changed

Article	Original D-57/2021	Reformed D-199/2025
Art. 1	Bitcoin = legal tender, "irrestricto" (universal)	Bitcoin = legal tender with unlimited liberatory power, but acceptance voluntary ; only natural persons + fully private legal entities
Art. 3	Prices may be expressed in BTC	Prices may be converted in BTC
Art. 4	Taxes payable in BTC	Derogated — taxes cannot be paid in BTC
Art. 5	BTC exchanges no capital gains (treated as legal tender)	BTC exchanges no capital gains (rule maintained, parenthetical removed)
Art. 7	Every economic agent shall accept Bitcoin (mandatory)	Only natural persons, or fully-private legal entities, may accept Bitcoin (voluntary)
Art. 8	State provides BTC↔USD conversion (Chivo wallet)	Derogated — Chivo wound down
Art. 9	Reglamento on State conversion	Derogated
Art. 11	BCR + SSF emit normativa within Art. 16 timeframe	Per legal competences (no time link)
Art. 12	Exclusion from Art. 7 mandatory acceptance for those without tech	State pays obligations in original currency

BSP framework — what's unchanged

D-27/2021 Reglamento Ley Bitcoin governs the BSP track. Operationally **unaffected by Reform D-199/2025**:

- **BSP Registry at BCR** — registration before operations (20 bd), discontinuation immediate + 72h removal D-27/2021 Art. 3
- **SSF supervision and sanctions** over BSPs D-27/2021 Art. 5
- **Standards of Conduct (Art. 4 a-i)**: AML programme · client-asset safeguard · books/records/customer accounts · complaint log · website + SSF notice · cybersecurity · physical security + DRP · resolution plan · transaction-limit policy
- **AML/CFT obligations** under LECLDA + Instructivo (Chapter IV-B Reform 1) — same as DASP track

Practical implication for combined BSP+DASP entity. If the entity holds both registrations: (i) AML programme is shared (one CO, one Prevention Committee, one AML manual); (ii) regulator interface is split (BCR Registry + SSF for BSP, CNAD for DASP, UIF for AML); (iii) Reform 2025 affects only the BTC retail-acceptance side, not the entity's compliance burden; (iv) Resolution Plan covers both tracks.

21. Anticipated framework updates

The Salvadoran VASP framework is actively evolving. A new CNAD Reglamento and a new UIF Instructivo are **expected** (no fixed publication date as of this version). This section flags what's in the pipeline so the AML manual can be designed for swap-in.

What's expected

Instrument	Anticipated focus
New CNAD Reglamento (replacing / amending RPSAD CNAD-035-2023)	Operational refresh integrating Reform 1 + Reform 2 of the Instructivo · potential clarification of stablecoin admission process · custody segregation rules · KYT vendor qualification · customer-attention SLAs
New UIF Instructivo (consolidating Reforms 1 + 2)	Clean consolidated text · VASP-specific reporting forms · deeper Travel Rule operationalisation (IVMS-101 / TRP / OpenVASP) · unhosted-wallet attribution standards
Possibly	Cyber-maturity rating framework · BSP/DASP cross-rail consolidation triggers · stablecoin reserve audit cadence

Practical implication for the AML manual

Keep the manual **modular** — discrete sections per Instructivo article so swap-in of new text affects only the impacted module. Maintain an internal change log + version control. Subscribe to CNAD *Boletín* + UIF announcements; review on each plenary cycle. This playbook reflects the framework as in force at the issue date (footer below); each post-publication update will be cross-referenced in a future revision.

What to do today (without waiting)

- AML manual structure: one module per Instructivo article (Arts. 4, 12, 13, 14, 14-A, 16-18, 20, 21, 21-A, 22, 23, 36-43, 51, 52 par. 2, 54, 64, 67-68, 84-A/B/C)
- Risk matrix: documented methodology aligned to Art. 4 RBA + Art. 10 inherent-risk criteria
- Travel Rule: implement 7-field data set + batch-processing rule today; protocol-level (IVMS-101) integration when counterparty VASPs support it
- Resolution Plan: maintain at all times per LEAD Art. 21(p) + Instr. Art. 84-B(9)
- \$125K monthly aggravator: monitor in KYT escalation matrix
- Internal transaction limits: publish in AML manual (Art. 84-B(1)(b))

End of document — v3.5 · 21 June 2026 · Instructivo UIF Cap. IV-B PSAV-specific obligations integrated (risk-based DD, regulated-operation reporting via goAML 6 PSAV forms, ROS, Travel Rule).